# 1987 Philippine Constitution

## ARTICLE III
## BILL OF RIGHTS

### Section 1: Right to Life, Liberty, and Property

No person shall be deprived of life, liberty, or property without due process of law, nor shall any person be denied the equal protection of the laws.

*- Everyone has the right to live, be free, and own property. These rights cannot be taken away unless there is a fair legal process.*

*- All people are also equal under the law.*

### Section 2: Protection from Unlawful Searches and Arrests

The right of the people to be secure in their persons, houses, papers, and effects against unreasonable searches and seizures of whatever nature and for any purpose shall be inviolable, and no search warrant or warrant of arrest shall issue except upon probable cause to be determined personally by the judge after examination under oath or affirmation of the complainant and the witnesses he may produce, and particularly describing the place to be searched and the persons or things to be seized.

*- No one can search your home or arrest you without a good reason.*

*- A search or arrest needs a warrant from a judge, and the warrant must explain exactly what is being searched or who is being arrested.*

### Section 3: Right to Privacy

(1) The privacy of communication and correspondence shall be inviolable except upon lawful order of the court, or when public safety or order requires otherwise, as prescribed by law.

(2) Any evidence obtained in violation of this or the preceding section shall be inadmissible for any purpose in any proceeding.

*- Your private communication, like letters and phone calls, cannot be opened or listened to without your permission.*

*- Any information gathered illegally cannot be used in court.*

## Section 4: Freedom of Speech and Press

No law shall be passed abridging the freedom of speech, of expression, or of the press, or the right of the people peaceably to assemble and petition the government for redress of grievances.

*- You can freely express your opinions through speech, writing, or art.*

*- The press (news media) is free to report without government control. However, this freedom must not harm others.*

## Section 5: Freedom of Religion

No law shall be made respecting an establishment of religion, or prohibiting the free exercise thereof. The free exercise and enjoyment of religious profession and worship, without discrimination or preference, shall forever be allowed. No religious test shall be required for the exercise of civil or political rights.

*- You are free to choose any religion or have no religion at all.*

*- The government cannot force or favor any religion.*

## Section 6: Freedom to Travel

The liberty of abode and of changing the same within the limits prescribed by law shall not be impaired except upon lawful order of the court. Neither shall the right to travel be impaired except in the interest of national security, public safety, or public health, as may be provided by law.

*- You can move around the country freely or choose where to live.*

*- This right can only be restricted for serious reasons like public safety or health emergencies.*

## Section 7: Right to Information

The right of the people to information on matters of public concern shall be recognized. Access to official records, and to documents and papers pertaining to official acts, transactions, or decisions, as well as to government research data used as basis for policy development, shall be afforded the citizen, subject to such limitations as may be provided by law.

*- You have the right to access information about public matters and government actions.*

*- Exceptions include matters involving national security.*

## Section 8: Freedom to Form Groups

The right of the people, including those employed in the public and private sectors, to form unions, associations, or societies for purposes not contrary to law shall not be abridged.

*- You can join or create organizations, unions, or groups, as long as your activities are peaceful and legal.*

## Section 9: Protection of Private Property

Private property shall not be taken for public use without just compensation.

*- The government cannot take your property without paying you fairly and using it for public benefit.*

## Section 10: Right to Honor Contracts

No law impairing the obligation of contracts shall be passed.

*- The government cannot interfere with or change valid agreements or contracts between people.*

## Section 11: Access to Justice

Free access to the courts and quasi-judicial bodies and adequate legal assistance shall not be denied to any person by reason of poverty.

*- Everyone has the right to go to court for justice, even if they cannot afford to pay.*

## Section 12: Rights of Arrested People

(1) Any person under investigation for the commission of an offense shall have the right to be informed of his right to remain silent and to have competent and

independent counsel preferably of his own choice. If the person cannot afford the services of counsel, he must be provided with one. These rights cannot be waived except in writing and in the presence of counsel.

(2) No torture, force, violence, threat, intimidation, or any other means which vitiate the free will shall be used against him. Secret detention places, solitary, incommunicado, or other similar forms of detention are prohibited.

(3) Any confession or admission obtained in violation of this or Section 17 hereof shall be inadmissible in evidence against him.

(4) The law shall provide for penal and civil sanctions for violations of this section as well as compensation to the rehabilitation of victims of torture or similar practices, and their families.

*- If you are arrested, you have the right to remain silent and have a lawyer present.*

*- You cannot be forced to confess. If you are hurt or forced to confess, that confession cannot be used in court.*

## Section 13: Right to Bail

All persons, except those charged with offenses punishable by reclusion perpetua when evidence of guilt is strong, shall, before conviction, be bailable by sufficient sureties, or be released on recognizance as may be provided by law. The right to

bail shall not be impaired even when the privilege of the writ of habeas corpus is suspended. Excessive bail shall not be required.

*- If you are accused of a crime, you can pay bail to stay out of jail while waiting for your trial, except for very serious crimes.*

## Section 14: Right to Fair Trial

(1) No person shall be held to answer for a criminal offense without due process of law.

(2) In all criminal prosecutions, the accused shall be presumed innocent until the contrary is proved, and shall enjoy the right to be heard by himself and counsel, to be informed of the nature and cause of the accusation against him, to have a speedy, impartial, and public trial, to meet the witnesses face to face, and to have compulsory process to secure the attendance of witnesses and the production of evidence in his behalf. However, after arraignment, trial may proceed notwithstanding the absence of the accused: Provided, that he has been duly notified and his failure to appear is unjustifiable.

*- If you are accused of a crime, you are considered innocent until proven guilty.*

*- You have the right to know the charges against you and to defend yourself in court with a lawyer.*

## Section 15: Right to Habeas Corpus

The privilege of the writ of habeas corpus shall not be suspended except in cases of invasion or rebellion, when the public safety requires it.

*- You cannot be detained without reason. If detained, you or someone else can file a writ of habeas corpus to ask a court to review your detention.*

*- This right can only be suspended in times of invasion or rebellion for public safety.*

## Section 16: Speedy Justice

All persons shall have the right to a speedy disposition of their cases before all judicial, quasi-judicial, or administrative bodies.

*- You have the right to a quick resolution of your case in court, without unnecessary delays.*

## Section 17: Right Against Self-Incrimination

No person shall be compelled to be a witness against himself.

*- You cannot be forced to testify or give evidence against yourself.*

## Section 18: Protection from Forced Labor

(1) No person shall be detained solely by reason of his political beliefs and aspirations.

(2) No involuntary servitude in any form shall exist except as a punishment for a crime whereof the party shall have been duly convicted.

*- You cannot be forced to work against your will, except as punishment for a crime.*

*- The government can require certain types of service during emergencies, like natural disasters.*

## Section 19: Ban on Cruel Punishments

(1) Excessive fines shall not be imposed, nor cruel, degrading or inhuman punishment inflicted. Neither shall death penalty be imposed, unless, for compelling reasons involving heinous crimes, the Congress hereafter provides for it. Any death penalty already imposed shall be reduced to reclusion perpetua.

(2) The employment of physical, psychological, or degrading punishment against any prisoner or detainee or the use of substandard or inadequate penal facilities under subhuman conditions shall be dealt with by law.

*- The government cannot impose cruel or inhumane punishments.*

*- Excessive fines or punishments are not allowed.*

## Section 20: No Imprisonment for Debts

No person shall be imprisoned for debt or non-payment of a poll tax.

*- You cannot be sent to jail just because you cannot pay a debt.*

## Section 21: Protection from Double Jeopardy

No person shall be twice put in jeopardy of punishment for the same offense. If an act is punished by a law and an ordinance, conviction or acquittal under either shall constitute a bar to another prosecution for the same act.

*- You cannot be tried twice for the same crime after being acquitted or convicted.*

## Section 22: Ban on Ex Post Facto Laws

No ex post facto law or bill of attainder shall be enacted.

*- Laws cannot punish actions that were legal at the time they were committed.*

*- The government also cannot pass laws that increase punishments after the fact.*